

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.:

DAYON WEATHERS,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
Kings County as the
place of trial.

THE CITY OF NEW YORK, POLICE OFFICER
JOHN PLUMITALLO, SHIELD NO. 16755,
POLICE OFFICER SEAN KEEGAN, SHIELD NO.
12338 and POLICE OFFICER JOSEPH VIGIANO,
SHIELD NO. 19363,

Basis of venue:
Location of occurrence

Defendants.

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 20, 2023

**FRIEDMAN, LEVY, GOLDFARB,
GREEN AND BAGLEY, P.C.**

Attorneys for Plaintiff
380 Lexington Ave. – 29th Floor
New York, NY 10168
(212) 307-5800

By: 
NICOLAS BAGLEY, ESQ.

Defendants' Addresses:

The City of New York
100 Church Street
New York, NY 10007

P.O. POLICE OFFICER JOHN
PLUMITALLO, Shield No. 16755
75th Precinct
1000 Sutter Ave.
Brooklyn, NY 11208

P.O. SEAN KEEGAN, Shield No. 12338
75th Precinct
1000 Sutter Ave.
Brooklyn, NY 11208

P.O. POLICE OFFICER JOSEPH VIGIANO,
Shield No. 19363
75th Precinct
1000 Sutter Ave.
Brooklyn, NY 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DAYON WEATHERS,

Plaintiff,

-against-

Index No.:

THE CITY OF NEW YORK, POLICE OFFICER
JOHN PLUMITALLO, SHIELD NO. 16755,
POLICE OFFICER SEAN KEEGAN, SHIELD NO.
12338 and POLICE OFFICER JOSEPH VIGIANO,
SHIELD NO. 19363,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff, DAYON WEATHERS, by his attorneys, FRIEDMAN, LEVY, GOLDFARB,
GREEN AND BAGLEY, P.C. as for his Verified Complaint, alleges the following, upon
information and belief:

PARTIES

1. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK was and
still is a municipal corporation duly organized and existing under the laws of the State of New
York.

2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK, its
agents, servants and employees operated, maintained and controlled the Police Department of the
City of New York, including all Police Officers thereof.

3. At all times hereinafter mentioned, on September 1, 2020, defendants police officer
JOHN PLUMITALLO, SHIELD NO. 16755, POLICE OFFICER SEAN KEEGAN, SHIELD NO.
12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363 were employed by
defendant THE CITY OF NEW YORK as police officers.

4. At all times hereinafter mentioned, defendants POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363 were acting within the scope of their employment as police officers with THE CITY OF NEW YORK.

5. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK has established and maintains a Department of Police as a constituent department or agency of the defendant.

6. Defendant THE CITY OF NEW YORK is and was at all times relevant herein a Municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363, as said risk attaches to the public consumers of the services provided by The New York City Police Department.

7. At all times hereinafter mentioned defendant, THE CITY OF NEW YORK, employed POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363.

8. At all relevant times, the individual defendants were acting pursuant to their authority as NEW YORK CITY POLICE DEPARTMENT employees. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the

course of their duty and were incidental to their otherwise lawful function as agents, servants and employees of the New York City Police Department.

9. The plaintiff, DAYON WEATHERS, was, on September 1, 2020, and at all times, a resident of the County of Kings, State of New York residing at 350 Sheffield Avenue, Apartment 2F, Brooklyn, New York 11207.

CONDITIONS PRECEDENT

10. On or about July 11, 2022, and within ninety (90) days of the plaintiff's release from continuous confinement and within ninety (90) days of dismissal of plaintiff's charges, plaintiff duly served a Notice of Claim upon the City of New York in the manner and mode required by law.

11. At least thirty (30) days have elapsed since the service of the Notice of Claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one (1) year and ninety (90) days after the release of confinement and within one (1) year and ninety (90) days of the dismissal of charges.

12. On November 15, 2022, the plaintiff complied with the request of the municipal defendants for an oral examination pursuant to Section 50-H of the General Municipal Law.

JURISDICTION AND VENUE

13. Plaintiff brings this action in the Supreme Court, State of New York, County of Kings, because the plaintiff has been injured for a sum that exceeds the jurisdiction of all lower courts.

14. The Plaintiff properly designates Kings County as the place of trial. The basis of the venue is the locus of the occurrence.

STATEMENT OF FACTS

15. On or about September 1, 2020, at approximately 10:50 p.m., plaintiff was a lawful passenger in a vehicle that was parking along the curb outside his home on Sheffield Avenue between Sutter Avenue and Blake Avenue, County of Kings, City and State of New York.

16. At the abovementioned time and place, said vehicle was illegally and unconstitutionally stopped by officers. Plaintiff was illegally and unconstitutionally ordered out of the vehicle, frisked and searched by NYPD officers, including POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363.

17. At the above specified time and place, without justification or provocation and without a warrant, the defendants, THE CITY OF NEW YORK, POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363, arrested plaintiff without an arrest warrant or probable cause to arrest, restrained plaintiff, held plaintiff in confinement for an unreasonable period of time and maliciously prosecuted without reasonable cause, provocation and/or justification.

18. Plaintiff was held at the 75th Precinct for approximately nine (9) hours and Central Bookings for approximately one (1) day. He was further taken to the Manhattan Detention Complex for approximately two (2) weeks. He was then held at Rikers Island until May 13, 2022.

19. On April 27, 2022, all charges against plaintiff were dismissed.

AS AND FOR A FIRST CAUSE OF ACTION

20. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “19,” inclusive, as though each were set forth at length herein.

21. On September 1, 2020, and thereafter, in the County of Kings, City and State of New York, the defendants, their agents, servants and/or employees wrongfully searched, imprisoned and detained plaintiff WEATHERS without any right or grounds thereof.

22. Defendants POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363 retrained plaintiff such that he was unable to move freely or otherwise leave the scene without apprising him as to why he was being placed under arrest.

23. Plaintiff was unlawfully searched, detained, arrested and imprisoned by the defendants, their agents, servants and/or employees without probable cause and/or justification.

24. Defendants, through their agents, servants and/or employees, acted in bad faith in committing the aforementioned search, detention, arrest and imprisonment of plaintiff.

25. Defendants, their agents, servants and/or employees, intended to confine the plaintiff, in that plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and that the confinement was not privileged.

26. At the time of his unlawful search, detention, arrest and imprisonment of plaintiff had not committed nor attempted to commit any illegal act or crime.

27. At the time of plaintiff's unlawful arrest, defendants knew that the aforementioned search, arrest and detention were false and without probable cause.

28. The said false arrest and false imprisonment caused plaintiff to suffer physical, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation.

29. Defendants placed plaintiff under arrest and falsely charged him with criminal possession of a weapon.

30. Plaintiff was in police custody, was unlawfully detained and falsely imprisoned. The unlawful search and seizure was without due process of law and was done to deprive plaintiff of his rights guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

31. It is alleged that defendants THE CITY OF NEW YORK, POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, POLICE OFFICER SEAN KEEGAN, SHIELD NO.

12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363, their agents, servants and employees, unlawfully searched, maliciously and intentionally detained, falsely detained, falsely imprisoned and humiliated plaintiff in violation of his constitutional rights.

32. Plaintiff was released from custody on May 13, 2022.

33. As a direct result of the above defendants' actions plaintiff suffered and continues to suffer physical pain, severe mental anguish, humiliation, shame, emotional distress and damage to reputation, some or all of which may be permanent.

34. Plaintiff suffered – and continues to suffer – greatly, was and is physically and emotionally traumatized by this detention and imprisonment.

35. The unlawful search, false criminal arrest and wrongful imprisonment of plaintiff because of defendants' knowledge of lack of any legitimate cause or justification, were intentional, malicious, reckless, and in bad faith.

36. As a direct and proximate result of defendant's actions, plaintiff was deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments to the United States Constitution and the laws of the City and the State of New York.

37. As a result of the foregoing, plaintiff demands judgment against defendants, THE

CITY OF NEW YORK, POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

38. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “37,” inclusive, as though each were set forth fully at length herein.

39. On or about September 1, 2020, at approximately 10:50 p.m., plaintiff was a lawful passenger in a vehicle that was parking along the curb outside his home on Sheffield Avenue between Sutter Avenue and Blake Avenue, County of Kings, City and State of New York when he was unlawfully searched, detained, arrested and imprisoned by defendants POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363, employed by defendant, THE CITY OF NEW YORK.

40. On or about September 1, 2020, defendants commenced a criminal proceeding against plaintiff knowing that plaintiff had not committed any of the alleged criminal acts.

41. Defendants lacked probable cause to for the stop, search, confinement, detainment, arrest, imprisonment and commencement of the criminal proceeding against plaintiff. The defendants did not witness any criminal acts, nor did the defendants did not observe and did not have any credible evidence that plaintiff was in possession of a weapon.

42. Despite this lack of probable cause, known to defendants immediately and prior to the arrest of plaintiff, defendants still falsely arrested plaintiff and maliciously prosecuted him for crimes he did not commit.

43. Defendants acted with improper motive and actual malice by knowingly arresting and continuing to prosecute plaintiff after observing that he did not commit a crime.

44. Furthermore, defendants continued the malicious prosecution that there was no probable cause for the arrest.

45. As a result of the above mentioned, the plaintiff was caused to suffer physical, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and will continue to suffer and still suffers severe and permanent injuries, and upon information and belief, will continue to suffer from said injuries.

46. As a result of the foregoing, plaintiff demands judgment against defendants, THE CITY OF NEW YORK, POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

47. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “46,” inclusive, as though each were set forth fully at length herein.

48. The actions of defendants heretofore described constitute an unlawful search, unlawful arrest and detention, false imprisonment and wrongful imprisonment, all in violation of plaintiff’s civil rights.

49. Defendants deprived plaintiff of his liberty in violation of his civil and constitutional rights, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

50. Defendants violated the civil and constitutional rights of plaintiff as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

51. Defendants' actions were undertaken under color of law and would not have existed but for said defendants using their official power.

52. The supervisors and policy making officers of defendant, THE CITY OF NEW YORK, and its Police Department have, as a matter of policy, failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individual officer engaged in such practices.

53. Defendant, THE CITY OF NEW YORK, and its Police Department, has sanctioned the above-described policy and practices through its deliberate indifference to the effect of said policy upon the constitutional and civil rights of plaintiff and others similarly situated.

54. As a result of the foregoing, plaintiff demands judgment against defendants, THE CITY OF NEW YORK, POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

55. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "54," inclusive, as though each were set forth fully at length herein.

56. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including defendant POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, defendant POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and defendant POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363, with the knowledge that said police officers

lacked the experience to be employed by the aforementioned defendant, and were, therefore, unfit to be police officers.

57. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including defendant POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, defendant POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and defendant POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363, with knowledge that said police officers lacked the department to be employed by the aforementioned defendant, and were, therefore, unfit to be police officers.

58. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including defendant POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, defendant POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and defendant POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363, with knowledge that said police officers lacked the experience to be employed by the aforementioned defendant, and therefore, were unfit to be police officers.

59. Defendant THE CITY OF NEW YORK hired and retained in its employ police officers, including defendant POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, defendant POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and defendant POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363, with knowledge that said police officers had vicious propensities and were therefore unfit to be police officers.

60. As a result of the foregoing, plaintiff has suffered serious and severe emotional distress, personal injuries and loss to his reputation.

61. As a result of the foregoing, plaintiff demands judgment against defendants, THE CITY OF NEW YORK, POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

62. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “61,” inclusive, as though each were set forth fully at length herein.

63. That the aforementioned occurrences, to wit: the unlawful search and seizure of plaintiff; the false arrest, detainment, unlawful arrest, unlawful and false imprisonment of plaintiff; the violation of plaintiff’s civil and constitutional rights; and the resulting injuries to the mind and body therefrom; were caused solely by reason of the negligence of the defendants, their agents, servants and/or employees, without any negligence on the part of the plaintiff.

64. As a result of the foregoing, plaintiff demands judgment against defendants, THE CITY OF NEW YORK, POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

65. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “64,” inclusive, as though each were set forth fully at length herein.

66. Defendants’ conduct towards plaintiff was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

67. Defendants acted with the desire to cause plaintiff mental distress and physical distress and pain/or acted under circumstances known to them which made it substantially certain that they would cause such mental and physical distress.

68. Defendants acted with utter and reckless disregard of the consequences of their actions.

69. As a result of the foregoing, plaintiff has sustained severe and debilitating physical, emotional and psychological distress, anguish, anxiety, fear, humiliation, and soreness.

70. As a result of the foregoing, plaintiff demands judgment against defendants, THE CITY OF NEW YORK, POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR AN SEVENTH CAUSE OF ACTION

71. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “70,” inclusive, as though each were set forth fully herein.

72. Upon information and belief, defendant THE CITY OF NEW YORK, through other police officers who are unknown at this time, by their conduct and under color of state law, had opportunities to intercede on behalf of plaintiff to prevent the unlawful search, seizure and arrest, but due to their intentional conduct or deliberate indifference declined or refused to do so.

73. As a direct and proximate result, plaintiff suffered injuries and damages described above.

74. As a result of the foregoing, plaintiff demands judgment against defendants, THE CITY OF NEW YORK, POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755,

POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THE ITEMS OF DAMAGE OR INJURIES CLAIMED

75. That by reason of the foregoing, plaintiff, WEATHERS, suffered mental distress, shock and other injuries that were incurred during his time in confinement and his civil rights were violated. Plaintiff sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some injuries which are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience, and other effects of such injuries, and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

76. Plaintiff suffered a deprivation of his civil rights and liberty, was unlawfully searched, falsely arrested, and falsely imprisoned. He was humiliated, embarrassed, unlawfully detained, suffered emotional harm, shock, loss of reputation in the community, loss of self-esteem, and fear and anxiety as a result of this incident.

77. Plaintiff was deprived of his freedom.

78. As a result of the aforementioned acts, defendants violated the rights of plaintiff secured to him under the Eighth Amendment and Fourteenth Amendment of the Constitution of the United States of America, and under 42 U.S.C. §1983.

79. Plaintiff was caused to undergo pain and suffering as a result of the aforementioned willful, wanton and deliberate indifference on the part of defendants.

80. The above constitutional violations are all actionable under and pursuant to 42 U.S.C. §§1981, 1983, 1985, 1986, 1988 and under New York State Law.

81. As a result of the aforesaid, plaintiff was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff, DAYSON WEATHERS, respectfully demands judgment against defendants, THE CITY OF NEW YORK, POLICE OFFICER JOHN PLUMITALLO, SHIELD NO. 16755, POLICE OFFICER SEAN KEEGAN, SHIELD NO. 12338 and POLICE OFFICER JOSEPH VIGIANO, SHIELD NO. 19363, and requests the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; an award of reasonable attorney's fees, costs and disbursements of this action; such other and further relief as this Court may deem proper under the circumstances.

Dated: New York, New York
July 20, 2023

Yours, etc.,

**FRIEDMAN, LEVY, GOLDFARB,
GREEN AND BAGLEY, P.C.**

Attorneys for Plaintiff
380 Lexington Ave. – 29th Floor
New York, NY 10168
(212) 307-5800

By: 
NICOLAS BAGLEY, ESQ.

ATTORNEY'S VERIFICATION BY AFFIRMATION

NICOLAS BAGLEY, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of FRIEDMAN, LEVY, GOLDFARB, GREEN & BAGLEY, P.C., attorneys of record for the plaintiff. I have read the annexed

SUMMONS and VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the plaintiff is because plaintiff resides outside of the county wherein your affirmant maintains offices.

Dated: New York, New York
July 20, 2023



NICOLAS BAGLEY, ESQ.